

CV-24-002391 MUNOZ, JUAN HERNANDEZ vs GUTIERREZ, VELIA – Plaintiff's Motion for Fees – DENIED, and unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: Pursuant to Civil Code section 1780(e), Plaintiff seeks attorney's fees in the amount of \$31,203.00 and costs in the amount of \$275.00. There is no opposition or reply on file. "[A] plaintiff seeking an award of attorney fees from a defaulting defendant must request those fees at the time the plaintiff requests entry of default." (Garcia v. Politis (2011) 192 Cal.App.4th 1474, 1480; Code Civ. Proc., § 585; Cal. Rules of Court, rule 3.1800.) The Court entered judgment by default on June 23, 2026, which included an award of costs in the amount of \$1423.16. "[A] party seeking entry of a default judgment must apply for all of the relief sought—including attorney fees—when application is made for entry of default." (Garcia, supra, 192 Cal.App.4th at 1479.) Accordingly, Plaintiff's motion is DENIED.

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: f5bc34199ca765b7cf222b37641d0185df99083f14bccf3fdef6dfdb00f8a6c7

CV-24-002391 – MUNOZ, JUAN HERNANDEZ vs GUTIERREZ, VELIA – Plaintiff's Motion for Fees – DENIED, and unopposed.

Pursuant to Civil Code section 1780(e), Plaintiff seeks attorney's fees in the amount of \$31,203.00 and costs in the amount of \$275.00. There is no opposition or reply on file.

"[A] plaintiff seeking an award of attorney fees from a defaulting defendant must request those fees at the time the plaintiff requests entry of default." (Garcia v. Politis (2011) 192 Cal.App.4th 1474, 1480; Code Civ. Proc., § 585; Cal. Rules of Court, rule 3.1800.)

The Court entered judgment by default on June 23, 2026, which included an award of costs in the amount of \$1423.16. "[A] party seeking entry of a default judgment must apply for all of the relief sought—including attorney fees—when application is made for entry of default." (Garcia, supra, 192 Cal.App.4th at 1479.)

Accordingly, Plaintiff's motion is DENIED.